

25STLC09056 25STLC09056

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC09056 Hearing Date: July 9, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Jeremi Jerry's Motion

to Compel Further Responses from Plaintiff to Defendant's First Set of Requests for Production of Documents and Request for Monetary Sanctions is denied.

Analysis:

On December 3, 2025, Plaintiff Jeremi Jerry ("Plaintiff"), in propria persona, filed the instant action for breach of contract against Defendant Damien Romel Farmer ("Defendant"). Defendant filed an Answer on January 27, 2026. On May 28, 2026, Plaintiff filed the instant Motion to Compel Further Responses from Plaintiff to Defendant's First Set of Requests for Production of Documents and Request for Monetary Sanctions. Plaintiff served Defendant with the Motion by first-class mail on the same day. No opposition has been filed to date.

Discussion

Plaintiff moves for an order compelling Defendant's further responses to Request for Production of Documents, Set One, and an award of monetary sanctions in the amount of \$2,500.00, pursuant to Code of Civil Procedure section 2031.310.

Procedural
Requirements

Notice of the

motion to compel further must be given “within 45 days of service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing,” otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).) This time is extended based on the manner of service; service by electronic mail extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Defendant served responses to the Request for Production of Documents, Set One, on March 5, 2026. (Motion, Jerry Decl., ¶3.) The instant Motion, however, was not filed and served until May 28, 2026, which was 84 days later. The 45-day deadline is mandatory and jurisdictional, meaning the Court cannot grant the instant Motion. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1409.)

Second, California

Rules of Court Rule 3.1345 requires all motions or responses involving further discovery to include a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, Rule 3.1345, subd. (a).) Alternatively, “the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).) The Motion is also not accompanied by a separate statement, nor has the Court allowed Plaintiff to submit a concise outline of the dispute.

Finally, the motion must

be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Plaintiff declares that he sent Defendant a meet and confer letter on May 10, 2026, but does not attach a copy for the Court’s consideration. (Motion, Jerry Decl., ¶5.) This is not sufficient to demonstrate a good faith meet and confer effort.

The Motion, therefore, fails to

demonstrate Plaintiff’s compliance with any of the mandatory procedural requirements.

Conclusion

Plaintiff Jeremi Jerry’s Motion

to Compel Further Responses from Plaintiff to Defendant’s First Set of Requests for Production of Documents and Request for Monetary Sanctions is denied.

Moving party to give notice.